The Honorable Thomas S. Zilly

UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WASHINGTON
AT SEATTLE

DAVID PETERSON, BEAU WATSON, JAY STICKNEY, EVAN MERRITT, NORM ALAN PETERSON II, RILEY KORF, RYAN STUPEY, KEVIN GLEASON, Plaintiffs, v. SNOHOMISH REGIONAL FIRE AND RESCUE, CHIEF KEVIN O'BRIEN, Does 1-10 Defendants.	CASE NO. 2:22-cv-01674-TSZ ANSWER AND AFFIRMATIVE DEFENSES OF DEFENDANT SNOHOMISH REGIONAL FIRE & RESCUE

Defendant Snohomish Regional Fire & Rescue ("SRFR") files this Answer and Affirmative Defenses to Plaintiffs' Complaint Declaratory Relief and Damages, ("Complaint") and respectfully states:

ANSWER

I. INTRODUCTION

1. Paragraph 1 includes a description of the complaint, for which no answer is required. SRFR admits that the Plaintiffs were employees subject to Washington State Governor Jay Inslee's COVID-19 Vaccine Mandate ("Proclamation 21-14"), and were thus required to become vaccinated unless approved for a medical or religious exemption and accommodation. SRFR further admits that

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it engaged in a reasonable accommodation process with Plaintiffs and determined that it could not reasonably accommodate them performing their patient-care duties, working in close proximity with other employees and the public, without imposing an undue burden on SRFR's operations. Except as so admitted, SRFR denies the allegations in paragraph 1.

2. SRFR admits that it negotiated with Plaintiff's Union regarding the impacts of the vaccination requirement, to include the option of using extended leave benefits in lieu of vaccination. Except as so admitted, Defendant denies the allegations in paragraph 2.

3. SRFR admits that in or around spring 2022, it evaluated current COVID-19 conditions and other factors and determined that it would not at that point impose an undue hardship to accommodate Plaintiffs' opposition to vaccination; and that it offered Plaintiffs the opportunity to return to work on June 1, 2022, provided that they complied with other current COVID-19 precautionary requirements. Except as so admitted, SRFR denies the allegations in paragraph 3.

II. JURISDICTION AND VENUE

4. SRFR admits the allegations in paragraph 4.

5. SRFR admits the allegations in paragraph 5.

6. The allegations in Paragraph 6 are legal conclusions, to which no response is required. To the extent a response is deemed required, SRFR admits that 28 U.S.C. §2201-02 permits federal courts to grant "necessary or proper relief based on a declaratory judgment," and that Fed. R. Civ. P. 57 and 65 permit federal courts to grant declaratory and injunctive relief, respectively, but otherwise denies that Plaintiffs' disputed claims are "authorized" under these provisions.

III. PARTIES

7. SRFR admits that Plaintiffs were employed by SRFR in Snohomish County, in Washington State, and that any personnel actions with respect to Plaintiffs' employment occurred there. SRFR further admits on information and belief that Plaintiffs deem themselves aggrieved by

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the actions of Defendants. Except as so admitted, paragraph 7 states legal conclusions, for which no answer is required.

8. Paragraph 8 contains multiple legal conclusions, for which no answer is required. SRFR admits that it is a municipal corporation; that it provides fire and emergency medical services in an approximately 140-square-mile area in Snohomish County, Washington; and it employed Plaintiffs during the times relevant to the alleged actions in the Complaint. Except as so admitted, SRFR denies the allegations in paragraph 8.

9. SRFR admits that Chief Kevin O'Brien's job responsibilities include managing the daily affairs of SRFR, including supervision of SRFR personnel and establishment of a chain of command to carry out such supervision; attending meetings of the SRFR Board of Commissioners (the "Board"); presenting issues raised in public hearings to the Board; and presenting SRFR's position at public and quasi-judicial hearings. SRFR lacks sufficient information or belief to admit or deny the allegations in paragraph 9 regarding DOES 1-10 and Plaintiffs beliefs regarding the same, and accordingly denies the same. Except as so admitted, SRFR denies the allegations of paragraph 9.

IV. FACTS

10. SRFR admits that Governor Inslee issued Proclamation 21-14 on or around August 9, 2021, and answers that the contents of the proclamation and any revisions speak for themselves. Accept as so admitted, SRFR denies the allegations in paragraph 10.

11. SRFR answers that on or around August 30, 2021, it circulated a memorandum with subject line "Details regarding Proclamation 21-14—COVID-19 Vaccine Mandate" to "All Healthcare Providers," and answers that the content of the memorandum speaks for itself. Except as so admitted, SRFR denies the allegations in paragraph 11.

12. SRFR admits that it engaged in an interactive process with any employees who were subject to the vaccination requirement, and who requested exemption on medical or religious grounds and accommodations of those objections. SRFR further admits that on or around October

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14, 2021, it circulated a memorandum with subject line "Proclamation 21-14 Update" to "All Department Personnel," and answers that the content of the memorandum speaks for itself. Except as so admitted, SRFR denies the allegations in paragraph 12.

13. SRFR admits that each Plaintiff submitted a written request for exemption from the vaccination requirement on the basis of religion and answers that the contents of the written requests speak for themselves. Except as so admitted, SRFR denies the allegations in paragraph 13.

14. SRFR admits that in October 2021 it entered into a Memorandum of Understanding with IAFF Local 2781 regarding the impacts of the vaccination requirement, and answers that the content of the negotiated MOU speaks for itself. Except as so admitted, SRFR denies the allegations in paragraph 14.

15. SRFR admits that Plaintiffs asked to be accommodated in their unvaccinated status in their healthcare provider positions; and that accommodations suggested by one or more Plaintiffs included the use of personal protective equipment ("PPE"), regular testing, and use of social distancing. SRFR admits it sent each Plaintiff a letter outlining SRFR's findings related to its reasonable accommodation determination, dated October 21, 2021, with subject line "RE: Lack of Accommodation—Mandatory COVID-19 Vaccination," and answers that the contents of these letters speak for themselves. Except as so admitted, SRFR denies the allegations in paragraph 15.

16. The allegations in paragraph 16 state legal conclusions, to which no response is required. SRFR denies that it failed to reasonably accommodate Plaintiffs and denies that it took any adverse action against them. SRFR denies the remaining allegations of paragraph 16.

17. SRFR admits it internally circulated a document dated November 9, 2021, entitled "Chief's Report," and answers that the content of this document speaks for itself. Except as so admitted, SRFR denies the allegations in paragraph 17.

18. SRFR admits that in or around April 2022, it evaluated current COVID-19 conditions and other factors and determined that it would not at that point impose an undue hardship to accommodate Plaintiffs' opposition to vaccination; and that it offered Plaintiffs the opportunity

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to return to performing their healthcare provider job duties, provided that they complied with other current COVID-19 precautionary requirements. Except as so admitted, SRFR denies the allegations in paragraph 18.

19. SRFR admits it sent each Plaintiff a letter outlining SRFR's findings related to its reasonable accommodation determination, dated May 27, 2022, with subject line "RE: Reasonable Accommodation Request Approval," and answers that the content of these letters speaks for itself. Except as so admitted, SRFR denies the allegations in paragraph 19.

20. SRFR admits Plaintiffs were offered an accommodation, were allowed to return to work, and that some Plaintiffs have not returned to work. SRFR lacks sufficient information to admit or deny allegations related to Plaintiffs' ability to return to work. Except as so admitted, SRFR denies the allegations in paragraph 20.

21. SRFR lacks knowledge or information sufficient to answer allegations regarding what is meant by "4.6(a)-(f)," and accordingly denies the same. Accordingly, SRFR denies any remaining allegations in paragraph 21.

22. SRFR admits the allegations in paragraph 22.

V. CAUSES OF ACTION

FIRST CAUSE OF ACTION: VIOLATION OF 42 U.S.C. §2000(e)

23. SRFR reasserts its responses to the paragraphs above.

24. SRFR answers that it did not make any decisions with respect to Plaintiffs' accommodation requests on the basis that it did not believe they were performing competently in the positions they held with SRFR. Except as so admitted, the allegations in paragraph 24 are legal conclusions, to which no response is required.

25. The allegations in paragraph 25 state legal conclusions, to which no response is required. SRFR denies that it failed to reasonably accommodate the religious beliefs of Plaintiffs.

26. The allegations in paragraph 26 state legal conclusions, to which no response is required. To the extent a response is deemed required, SRFR denies the allegations in paragraph 26.

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27. SRFR admits that Plaintiffs believe that the accommodation options offered to them did not constitute reasonable accommodations, and that SRFR disagrees. Except as so admitted, SRFR denies the allegations in paragraph 27.

SECOND CAUSE OF ACTION: VIOLATION OF WASHINGTON LAW AGAINST DISCRIMINATION (RCW §49.60)

28. SRFR reasserts its responses to the paragraphs above.

29. SRFR answers that it did not make any decisions with respect to Plaintiffs' accommodation requests on the basis that it did not believe they were performing competently in the positions they held with SRFR. Except as so admitted, the allegations in paragraph 29 are legal conclusions, to which no response is required.

30. The allegations in paragraph 30 state legal conclusions, to which no response is required. To the extent a response is deemed required, SRFR denies the allegations in paragraph 30.

31. The allegations in paragraph 31 state legal conclusions, to which no response is required. To the extent a response is deemed required, SRFR denies the allegations in paragraph 31.

32. SRFR admits that the parties disagree about whether the accommodation options offered to Plaintiffs, which included the opportunity to be placed on a leave of absence, were consistent with SRFR's obligations under RCW 49.60. Except as so answered, SRFR denies the allegations in paragraph 32.

VI. PRAYER FOR RELIEF

SRFR therefore denies that Plaintiffs are entitled to any relief in this matter.

AFFIRMATIVE DEFENSES

1. Plaintiffs failed to satisfy the notice and waiting period requirements of RCW § 4.96.020.

2. Plaintiffs have failed in whole or in part to state a claim on which relief can be granted.

3. Plaintiffs have suffered no damages and/or failed to mitigate damages.

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4. Plaintiffs' requested accommodations imposed an undue hardship.

5. Plaintiffs' requested accommodations posed a direct threat to the SRFR, its employees, and the public.

SRFR reserves the right to add, supplement, modify, change, or amend any or all of their Affirmative Defenses as the facts and circumstances become known through discovery and/or investigation.

PRAYER FOR RELIEF

WHEREFORE, Defendant SRFR prays:

1. The Complaint be dismissed with prejudice;

2. SRFR be awarded its reasonable attorneys' fees and costs in accordance with 42 U.S.C. § 2000e-5k; and

3. That SRFR be awarded such other and further relief as the Court deems just and equitable.

DATED this 3rd day of February, 2023.

Respectfully submitted,

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